

24CHCV00723 24CHCV00723

County: los-angeles

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Case Number: 24CHCV00723 Hearing Date: September 15, 2026 Dept: F47

Dept. F47

Date: 9/15/26

Case #24CHCV00723

MOTION TO SET

ASIDE DISMISSAL

Motion filed on 6/3/26.

MOVING PARTY: Plaintiff Frederick Flores as Administrator
of the Estate of Sergio M. Flores

RESPONDING PARTY: Defendant PHH Mortgage Corporation

NOTICE: ok

RELIEF REQUESTED: An order
setting

aside the Court's dismissal of this case and issuance of an order reinstating the case on the Court's
calendar.

RULING: The motion is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 3/7/24, Plaintiff Frederick Flores as Administrator of

the Estate of Sergio M. Flores (Plaintiff), represented by attorney Tony Cara of CDLG, PC, filed this action against Defendant PHH Mortgage Corporation (Defendant) alleging causes of action for: (1) Violation of Civil Code 2923.5, (2) Violation of Civil Code 2923.6(c), (3) Violation of Civil Code 2924.9, (4) Violation of Civil Code 2924.11, (5) Wrongful Foreclosure and (6) Unfair Business Practices, Violation of Business & Professions Code 17200, et seq. On 4/5/24, Defendant answered the complaint.

On 5/13/24, Defendant served Plaintiff, by first-class mail, with Requests for Production of Documents, Set 1. Despite Defendant's repeated attempts to informally resolve the discovery dispute, Plaintiff failed to serve responses. On 8/7/24, a Substitution of Attorney form was filed substituting attorney Gary Saunders as Plaintiff's counsel in place of attorney Cara. (See 8/7/24 Substitution of Attorney; 1/8/25 Minute Order).

On 12/3/24, Defendant filed and served a motion seeking an order compelling Plaintiff to provide verified written responses and produce documents in response to Defendant's Request for Production of Documents, Set 1. Additionally, Defendant requested an order imposing monetary sanctions.

On 5/13/25, this Court granted the motion to compel ordering Plaintiff to provide verified responses, without objections, and to produce corresponding documents within 15 days. (See 5/13/25 Minute Order). Additionally, the Court ordered Plaintiff and Plaintiff's counsel of record to pay Defendant sanctions in the amount of \$870.00 within 15 days. Id.

Plaintiff failed to comply with the Court's 5/13/25 order. Therefore, on 6/18/25, Defendant filed and served a motion seeking an order imposing terminating sanctions against Plaintiff Frederick Flores as Administrator of the Estate of Sergio M Flores due to his failure to respond to and produce documents and his failure to comply with this Court's prior order compelling Plaintiff to respond to requests for production and pay monetary sanctions. On 6/24/25, attorney Gary Saunders substituted out as Plaintiff's counsel in this action. (See 6/24/25 Substitution of Attorney).

On 11/17/25, attorney Dennis Rasmussen substituted into the case as Plaintiff's counsel of record. (See Substitution of Attorney filed 11/17/25). On 1/6/25, Plaintiff filed and served an

opposition to the motion for terminating sanctions. On 1/9/25, Defendant filed and served a reply to the opposition.

On 1/20/26, the Court granted Defendant's motion for terminating sanctions. (See 1/20/26 Minute Order). On 2/3/26, the Court entered a judgment of dismissal with prejudice in favor of Defendant. (See 2/3/26 Judgment).

On 6/3/26, attorney Jovi G. Usude substituted in as Plaintiff's counsel in this action in place of attorney Rasmussen. (See 6/3/26 Substitution of Attorney). On the same day, Plaintiff filed and served the instant motion seeking an order setting aside the Court's dismissal of this case and issuance of an order reinstating the case on the Court's calendar. Defendant has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

Although Plaintiff seeks relief "pursuant to CCP 473(b), the Court's equitable powers, and California's strong public policy favoring resolution of cases on their merits," it actually appears that Plaintiff improperly seeks reconsideration of the Court's 1/20/26 order imposing terminating sanctions and the subsequent 2/3/26 judgment of dismissal and/or contends that the Court made the wrong ruling. Plaintiff contends that the terminating sanctions imposed were disproportionate under the circumstances and different facts/circumstances now exist. (See Notice of Motion, p.2:15-18; Reply, p.4:14); CCP 1008(a). As a motion for reconsideration, the instant motion is untimely. *Id.* Additionally, Plaintiff has failed to provide a valid excuse/explanation for not providing the new facts in response to the original motion. See *Garcia* (1997) 58 CA4th 674, 688-690; *Gilberd* (1995) 32 CA4th 1494, 1499; *N.Y. Times Co.* (2005) 135 CA4th 206, 212-213; *Shiffer* (2015) 240 CA4th 246, 255.

Under CCP 473(b), the motion also fails. Plaintiff attempts to blame his failure to comply with his discovery obligations and his contradictory discovery responses and deposition testimony on his prior counsel, attorney Saunders. (See *Flores Decl.*; Plaintiff's Ex.B). However, attorney Saunders was not representing Saunders at the time the responses were served or at the time

Plaintiff's deposition was taken in December of 2025.

Regardless, Plaintiff cannot obtain mandatory relief under CCP 473(b) based on attorney-fault because such relief is only available for a dismissal that results from a motion for terminating sanctions if the plaintiff failed to oppose such a motion. See Rodriguez (2025) 116 CA5th 791, 806. Here, as noted above, Plaintiff opposed the prior motion for terminating sanctions. The reply seems to concede that mandatory relief under CCP 473(b) is not available under the circumstances. (See Reply, p.3:19-20).

Plaintiff has also failed to establish that he is entitled to discretionary relief under CCP 473(b). The evidence establishes that Plaintiff failed to timely respond to the discovery requests, failed to comply with a court order to provide responses to the discovery requests and pay sanctions, and then Plaintiff provided false responses to the discovery requests as evidenced by Plaintiff's deposition testimony. Plaintiff's attempts to blame his former counsel is unavailing. The motion places the blame on attorney Saunders. In response to the opposition pointing out that attorney Saunders was not Plaintiff's counsel of record at the time the false responses were made, Plaintiff blames "the history of changing representation" as "part of the circumstances explaining how the discovery matter deteriorated and why Plaintiff, a nonlawyer, came to verify responses whose descriptions of searches and document collection did not accurately correspond to what he personally had done." (See Reply, p.7:19-22). The multiple changes in Plaintiff's counsel does not change the fact that Plaintiff attested under oath that he had made a diligent search and inquiry for responsive documents when he had not done so as evidenced by his own deposition testimony. Litigants have a responsibility to read and understand the documents that they sign and attest to under oath.

Further, Plaintiff did not act diligently in seeking relief. The Court granted Defendant's motion for terminating sanctions on 1/20/26 with the parties waiving notice. (See 1/20/26 Minute Order). Additionally, the judgment of dismissal was entered on 2/3/26 with notice of same being served the same day. (See Notice of Entry of Judgment filed 2/3/26). Without explanation, Plaintiff did not file the instant motion until 6/3/26.

See *Stafford* (1998) 64 CA4th 1174, 1185-1187; *Minick* (2016) 3 CA5th 15, 34.

CONCLUSION

The motion is denied.